



H-1B CAP eligibility guidelines

At Affine, we understand that getting an onsite opportunity is a stepping stone in every individual's career growth. In this regard, Affine India has come up with the following eligibility guidelines for the H-1B CAP season:

1. Individuals should have received an “Exceeds Expectations” and above rating in at least 1 of the last 2 appraisal cycles. Those with a “Partially Meets” or below in either of the last 2 appraisal cycles are not eligible.
2. This policy is applicable to all those who are FTEs
3. Individual should have completed at least 1 year in the organization and should be at a minimum role of a Sr. Associate or above
4. Employee should be willing to travel to the US for the long term – Else liquidated damages/denial to travel policy would be applicable
5. Project/location/method of applying visa will be decided by the company and will be final
6. Once the case has been initiated/filed there is no option to withdraw

Liquidated Damages/ Visa Cost: In the event that you decide to leave your employment with Affine post-initiation/extension of your visa and documentation submitted to the lawyers for the purpose of visa through no fault of Affine, Affine may recover bona fide liquidated damages. In such a scenario, you agree to pay Affine the fees incurred on your visa application(s) on actuals, which will be reduced monthly on a prorated basis from the date of joining Affine US for a duration of 18 months (India Transfer) and the date of approval for a duration of 24 months (Already present in the US) or up to \$5,000.00, whichever is lower.

- **From the time we initiate your visa process until your visa is stamped:**
 - Affine will recover 100% of the visa cost
 - In case your visa is denied, the amendment to the employment agreement will stand void
- **From the date of joining Affine Inc on H/L visa:**
 - The recovery of the visa cost will be pro-rated from the first date of joining Affine US until 18 months (India Transfer) and from the date of approval until 24 months (Already present in the US)
 - On completion of 18 months/24 months from the date of joining/approval, you will not fall under the preview of liquidated damages
 - In-case Affine is unable to relocate you to the US within 6 months from the date of stamping, the amendment to the employment agreement will stand void

Denial of Travel: Upon application of H-1B of the employee, Denial of travel (other than any uncontrollable factors attributed to reasons such as medical or emergency) will be considered as willful neglect of duty. In such cases, the Company will be within its right to terminate employment with immediate effect & require the Employee to repay the full (100%) visa cost.

Affine Inc.

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H-1B withdrawal:

If an individual decides to withdraw the H-1B Petition (due to some emergency) for no fault of Affine:

- Immigration Team has discussions with the individual and will try to understand the reasons for withdrawal/works with the individual to get the RFE Response Filed.
- In case the employee confirms that he/she wants to withdraw the case. The liquidated damages would be converted to a time-bound clause. The individual instead of returning the amount spent by Affine on their visa would have the option to withdraw and spend 18 months in the organization from the date of acceptance in lieu of the damages.
- In case, the individual decides to leave the organization, they would be bound to re-pay the damages on a pro-rated basis from the date of acceptance and this would be valid for 18 months.
- If an individual decides to pull back his case at an RFE Level, due to no fault of the company. Affine will not re-file the individual's petition in the next CAP Season

LCA Repost:

An LCA Repost is required when an individual changes their residential address in the US. This is mandatory as per USCIS norms when an individual is working from home.

Affine will bear the cost for the 1st time that an individual changes their residential address, and in case he/ she changes their address again or if an LCA re-post is required more than once on an individual's case the cost will be borne by the individual.

Disclaimer:

The final decision on the above matters will at all times remain at management's discretion. The management of the company will have the authority to make amendments (deletion/addition/improvisation, etc.) to this policy.

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